

PETITION - CLEAR A SOUTH CAROLINA UNDERAGE-ALCOHOL CHARGE AFTER YOU COMPLETED THE ALCOHOL EDUCATION PROGRAM

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO DESTROY ARREST RECORDS AFTER SUCCESSFUL ALCOHOL EDUCATION PROGRAM COMPLETION, S.C. CODE Sec. 17-22-530(A)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 17-22-510; S.C. Code Sec. 17-22-520; S.C. Code Sec. 17-22-530(A); S.C. Code Sec. 17-22-530(B); S.C. Code Sec. 17-22-550; S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The controlling citation is settled at source. Article 5 of Chapter 22, Title 17 is the Alcohol Education Program: Sec. 17-22-510 gives each circuit solicitor prosecutorial discretion to establish the programme, Sec. 17-22-520 sets eligibility, and Sec. 17-22-530 governs disposition on completion. Under Sec. 17-22-530(A), when a person successfully completes an alcohol education programme the circuit solicitor shall effect a noncriminal disposition of the alcohol-related offence and no record may be maintained except by the Commission on Prosecution Coordination to prevent a second use; under Sec. 17-22-530(B) the person may then apply to the court for an order to destroy all official records relating to the arrest. Section 17-22-520 confines eligibility to a person at least seventeen but under twenty-one at the time of arrest, with no prior alcohol-related offence and no significant history of prior delinquency or criminal activity, charged with one of eleven enumerated offences or another offence similar in nature and severity as determined by the circuit solicitor, expressly excluding the offences enumerated in Sec. Sec. 56-5-2930 and 56-5-2933. Participation is once only. Section 17-22-940(D) names the alcohol education program director as an attestor and Sec. 17-22-940(E)(1) exempts Sec. 17-22-530(A) from the SLED verification fee.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
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[C11 - age at arrest] How old were you on the date of arrest?

.....  
.....

[C12 - prior alcohol offense] Had you ever had any other alcohol-related offence before this one?

.....  
.....

[C13 - aep completion date] On what date did you successfully complete the Alcohol Education Program, and which circuit administered it?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 17-22-510; S.C. Code Sec. 17-22-520; S.C. Code Sec. 17-22-530(A); S.C. Code Sec. 17-22-530(B); S.C. Code Sec. 17-22-550; S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:SC:sc\_aep

REQUEST FOR ATTESTATION - CLEAR A SOUTH CAROLINA UNDERAGE-ALCOHOL CHARGE  
AFTER YOU COMPLETED THE ALCOHOL EDUCATION PROGRAM

TO: Solicitor's Office in the judicial circuit where the offence was committed

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DATE OF BIRTH: 1968-12-31

REQUEST FOR ATTESTATION

I am asking the office named above for the attestation the record requires before this matter can go forward.

The matter this request concerns:

Court or office that handled the matter:

.....

Case or docket number:

.....

Date of the disposition:

.....

What I am asking for:

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

Route: obligation:track-only:SC:sc\_aep

## FILING INSTRUCTIONS - CLEAR A SOUTH CAROLINA UNDERAGE-ALCOHOL CHARGE AFTER YOU COMPLETED THE ALCOHOL EDUCATION PROGRAM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Destroy Arrest Records After Successful Alcohol Education Program Completion, S.C. Code Sec. 17-22-530(A).

The controlling citation is settled at source. Article 5 of Chapter 22, Title 17 is the Alcohol Education Program: Sec. 17-22-510 gives each circuit solicitor prosecutorial discretion to establish the programme, Sec. 17-22-520 sets eligibility, and Sec. 17-22-530 governs disposition on completion. Under Sec. 17-22-530(A), when a person successfully completes an alcohol education programme the circuit solicitor shall effect a noncriminal disposition of the alcohol-related offence and no record may be maintained except by the Commission on Prosecution Coordination to prevent a second use; under Sec. 17-22-530(B) the person may then apply to the court for an order to destroy all official records relating to the arrest. Section 17-22-520 confines eligibility to a person at least seventeen but under twenty-one at the time of arrest, with no prior alcohol-related offence and no significant history of prior delinquency or criminal activity, charged with one of eleven enumerated offences or another offence similar in nature and severity as determined by the circuit solicitor, expressly excluding the offences enumerated in Sec. Sec. 56-5-2930 and 56-5-2933. Participation is once only. Section 17-22-940(D) names the alcohol education program director as an attestor and Sec. 17-22-940(E)(1) exempts Sec. 17-22-530(A) from the SLED verification fee.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. The alcohol education program director must attest by signature under Sec. 17-22-940(D) before the solicitor and then a circuit court judge sign. No SLED verification fee is charged.

Venue: Statewide statute administered circuit by circuit, each programme being under the direct supervision and control of the circuit solicitor. Apply to the Solicitor's Office in the judicial circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; NO SLED verification fee, because Sec. 17-22-940(E)(1) exempts this route; and the \$35 clerk of court filing fee under Sec. 17-22-940(F). The Sec. 17-22-550 programme enrolment fee of \$250, and any provider fees, are programme costs; participation may not be denied for inability to pay and those fees may be waived or reduced at the solicitor's discretion. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a

first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- Fees: \$250 program fee plus possible provider fees. Inability to pay cannot bar participation, and the solicitor may waive or reduce fees.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The participant was terminated from the programme or the offence was reinstated.
- The offence may be a DUI-type offence under Sec. 56-5-2930 or Sec. 56-5-2933, which the programme excludes.
- The Alcohol Education Program Director will not attest.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_aep-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a South Carolina underage-alcohol charge after you completed the Alcohol Education Program)

- sc\_aep-attestation-request-3: the written request to the office the record names as the attesting authority  
(Clear a South Carolina underage-alcohol charge after you completed the Alcohol Education Program)

Route: obligation:track-only:SC:sc\_aep

PETITION - CLEAR A FIRST SOUTH CAROLINA DRUG POSSESSION CASE THAT ENDED IN A  
CONDITIONAL DISCHARGE

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in  
this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE RECORDS AFTER A FIRST-OFFENCE DRUG  
CONDITIONAL DISCHARGE, S.C. CODE Sec. 44-53-450(B)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec.  
44-53-450(A); S.C. Code Sec. 44-53-450(B); S.C. Code Sec. 44-53-450(C); S.C. Code Sec. 44-53-370(c);  
S.C. Code Sec. 44-53-370(d); S.C. Code Sec. 44-53-375(A); S.C. Code Sec. 17-22-940(D); S.C. Code  
Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 44-53-450(A) allows a person not previously convicted of any  
offence under Article 3 of Chapter 53, Title 44, or under any state or federal marijuana, stimulant,  
depressant or hallucinogenic drug statute, who pleads guilty to or is found guilty of possession of a  
controlled substance under Sec. 44-53-370(c) or (d) or Sec. 44-53-375(A), to be placed on probation  
without entry of a judgment of guilt, with the court discharging the person and dismissing the proceedings  
on fulfilment of the terms. The discharge is not a conviction for purposes of any disqualification or  
disability, a nonpublic record is retained by the Department of Narcotic and Dangerous Drugs under  
SLED solely to determine whether a later offence is a subsequent one, and the discharge and dismissal  
may occur only once with respect to any person. Subsection (B) is the expungement: on dismissal and  
discharge the person may apply to the court for an order expunging from all official records, other than  
the retained nonpublic record, all recordation relating to the arrest, indictment or information, trial,  
finding of guilt, and the dismissal and discharge, and if the court determines after hearing that the person  
was dismissed and discharged it shall enter the order, restoring the person in the contemplation of law to  
the status occupied before arrest. Subsection (C) requires payment before discharge of a fee of \$350 in  
general sessions court or \$150 in summary court, waivable, reducible or suspendable only for indigency.  
Section 17-22-940(D) requires the summary court judge to attest where the matter was in summary court,  
and Sec. 17-22-940(E) exempts the route from SLED verification and its fee.

B. THE PETITIONER

Date of birth: 1968-12-31



C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - prior drug conviction] Before this case, had you ever been convicted of any drug offence, in South Carolina, another state or a federal court?

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[C12 - discharge date] On what date did the court discharge you and dismiss the proceedings?

.....  
.....

[C13 - discharge fee paid] Did you pay the conditional discharge fee - \$350 in General Sessions or \$150 in summary court - or was it waived for indigency?

.....  
.....

[C14 - prior conditional discharge] Have you ever had a conditional discharge under this section before?

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#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 44-53-450(A); S.C. Code Sec. 44-53-450(B); S.C. Code Sec. 44-53-450(C); S.C. Code Sec. 44-53-370(c); S.C. Code Sec. 44-53-370(d); S.C. Code Sec. 44-53-375(A); S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:SC:sc\_conditional\_discharge\_44\_53\_450

REQUEST FOR ATTESTATION - CLEAR A FIRST SOUTH CAROLINA DRUG POSSESSION CASE  
THAT ENDED IN A CONDITIONAL DISCHARGE

TO: Solicitor's Office in the judicial circuit where the offence was committed

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DATE OF BIRTH: 1968-12-31

REQUEST FOR ATTESTATION

I am asking the office named above for the attestation the record requires before this matter can go forward.

The matter this request concerns:

Court or office that handled the matter:

.....

Case or docket number:

.....

Date of the disposition:

.....

What I am asking for:

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

Route: obligation:track-only:SC:sc\_conditional\_discharge\_44\_53\_450

## FILING INSTRUCTIONS - CLEAR A FIRST SOUTH CAROLINA DRUG POSSESSION CASE THAT ENDED IN A CONDITIONAL DISCHARGE

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge Records After a First-Offence Drug Conditional Discharge, S.C. Code Sec. 44-53-450(b).

Read at source on 2026-08-06, Sec. 44-53-450(A) allows a person not previously convicted of any offence under Article 3 of Chapter 53, Title 44, or under any state or federal marijuana, stimulant, depressant or hallucinogenic drug statute, who pleads guilty to or is found guilty of possession of a controlled substance under Sec. 44-53-370(c) or (d) or Sec. 44-53-375(A), to be placed on probation without entry of a judgment of guilt, with the court discharging the person and dismissing the proceedings on fulfilment of the terms. The discharge is not a conviction for purposes of any disqualification or disability, a nonpublic record is retained by the Department of Narcotic and Dangerous Drugs under SLED solely to determine whether a later offence is a subsequent one, and the discharge and dismissal may occur only once with respect to any person. Subsection (B) is the expungement: on dismissal and discharge the person may apply to the court for an order expunging from all official records, other than the retained nonpublic record, all recordation relating to the arrest, indictment or information, trial, finding of guilt, and the dismissal and discharge, and if the court determines after hearing that the person was dismissed and discharged it shall enter the order, restoring the person in the contemplation of law to the status occupied before arrest. Subsection (C) requires payment before discharge of a fee of \$350 in general sessions court or \$150 in summary court, waivable, reducible or suspendable only for indigency. Section 17-22-940(D) requires the summary court judge to attest where the matter was in summary court, and Sec. 17-22-940(E) exempts the route from SLED verification and its fee.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. Where the matter was in summary court the summary court judge must attest by signature under Sec. 17-22-940(D) before the solicitor and then a circuit court judge sign. No SLED verification is required and no SLED fee is charged.

Venue: Statewide statute. The conditional discharge itself may be entered in general sessions or summary court; the expungement application runs through the Solicitor's Office in the circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; NO SLED verification fee, because Sec. 17-22-940(E)(1) exempts this route; and the \$35 clerk of court filing fee under Sec. 17-22-940(F). The Sec. 44-53-450(C) conditional-discharge fee of \$350 in general sessions court or \$150 in summary court is a separate and earlier cost, payable before discharge and dismissal. Fee waiver as recorded: The Sec.

44-53-450(C) conditional-discharge fee may be waived, reduced or suspended only in cases of indigency. The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED retention: the Department of Narcotic and Dangerous Drugs under SLED retains nonpublic information under section 44-53-450.
- Conditional discharge itself carries a fee before discharge or dismissal of \$350 in General Sessions and \$150 in summary court, with indigency-based waiver, reduction or suspension possible.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- Any prior drug conviction, which defeats the route entirely.
- The terms and conditions were not fulfilled, or an adjudication of guilt was entered.
- The Sec. 44-53-450(C) fee is unpaid.
- The Summary Court Judge will not attest.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the

initial package still generates.

#### THE PAGES IN THIS SET

- sc\_conditional\_discharge\_44\_53\_450-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a first South Carolina drug possession case that ended in a conditional discharge)
- sc\_conditional\_discharge\_44\_53\_450-attestation-request-3: the written request to the office the record names as the attesting authority (Clear a first South Carolina drug possession case that ended in a conditional discharge)

Route: obligation:track-only:SC:sc\_conditional\_discharge\_44\_53\_450

PETITION - CLEAR A SOUTH CAROLINA TRAFFIC CHARGE AFTER YOU COMPLETED THE TRAFFIC EDUCATION PROGRAM

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO DESTROY ARREST RECORDS AFTER SUCCESSFUL TRAFFIC EDUCATION PROGRAM COMPLETION, S.C. CODE Sec. 17-22-330(A)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 17-22-310; S.C. Code Sec. 17-22-320; S.C. Code Sec. 17-22-330(A); S.C. Code Sec. 17-22-330(C); S.C. Code Sec. 17-22-330(D); S.C. Code Sec. 17-22-350; S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The controlling citation is settled at source. Article 3 of Chapter 22, Title 17 is the Traffic Education Program Act: Sec. 17-22-310 gives each circuit solicitor prosecutorial discretion to establish a programme for persons who commit traffic-related offences punishable only by a fine and loss of four points or less, and bars participation where the offence resulted in death or serious bodily injury; Sec. 17-22-320 confines eligibility to a person with no significant history of traffic violations and allows participation only once; and Sec. 17-22-330(A) provides that on successful completion the administering governmental agency shall effect a noncriminal disposition of the offence, with no record maintained except by the programme to prevent a second use. Subsections (C) and (D) allow termination and reinstatement for violating the conditions, and require termination where the person receives a subsequent traffic violation in the six months following the ticket. Section 17-22-940(D) names the traffic education program director as an attester and Sec. 17-22-940(E)(1) exempts Sec. 17-22-330(A) from the SLED verification fee.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

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[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - tep completion date] On what date did you successfully complete the Traffic Education Program, and which circuit or agency administered it?

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.....

[C12 - subsequent violation] Did you get another traffic ticket in the six months after the ticket that put you in the programme?

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.....

[C13 - injury or death] Did the incident cause anyone's death or a serious bodily injury?

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.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 17-22-310; S.C. Code Sec. 17-22-320; S.C. Code Sec. 17-22-330(A); S.C. Code Sec. 17-22-330(C); S.C. Code Sec. 17-22-330(D); S.C. Code Sec. 17-22-350; S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-only:SC:sc\_tep

REQUEST FOR ATTESTATION - CLEAR A SOUTH CAROLINA TRAFFIC CHARGE AFTER YOU COMPLETED THE TRAFFIC EDUCATION PROGRAM

TO: Solicitor's Office in the judicial circuit where the offence was committed

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DATE OF BIRTH: 1968-12-31

REQUEST FOR ATTESTATION

I am asking the office named above for the attestation the record requires before this matter can go forward.

The matter this request concerns:

Court or office that handled the matter:

.....

Case or docket number:

.....

Date of the disposition:

.....

What I am asking for:

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

Route: obligation:track-only:SC:sc\_tep

## FILING INSTRUCTIONS - CLEAR A SOUTH CAROLINA TRAFFIC CHARGE AFTER YOU COMPLETED THE TRAFFIC EDUCATION PROGRAM

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Destroy Arrest Records After Successful Traffic Education Program Completion, S.C. Code Sec. 17-22-330(A).

The controlling citation is settled at source. Article 3 of Chapter 22, Title 17 is the Traffic Education Program Act: Sec. 17-22-310 gives each circuit solicitor prosecutorial discretion to establish a programme for persons who commit traffic-related offences punishable only by a fine and loss of four points or less, and bars participation where the offence resulted in death or serious bodily injury; Sec. 17-22-320 confines eligibility to a person with no significant history of traffic violations and allows participation only once; and Sec. 17-22-330(A) provides that on successful completion the administering governmental agency shall effect a noncriminal disposition of the offence, with no record maintained except by the programme to prevent a second use. Subsections (C) and (D) allow termination and reinstatement for violating the conditions, and require termination where the person receives a subsequent traffic violation in the six months following the ticket. Section 17-22-940(D) names the traffic education program director as an attestor and Sec. 17-22-940(E)(1) exempts Sec. 17-22-330(A) from the SLED verification fee.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. The traffic education program director must attest by signature under Sec. 17-22-940(D) before the solicitor and then a circuit court judge sign. No SLED verification fee is charged.

Venue: Statewide statute administered circuit by circuit under the direct supervision and control of the circuit solicitor, who may contract with a county or municipality. Apply to the Solicitor's Office in the judicial circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; NO SLED verification fee, because Sec. 17-22-940(E)(1) exempts this route; and the \$35 clerk of court filing fee under Sec. 17-22-940(F). The Sec. 17-22-350 programme application fee of \$140, which cannot be reduced or suspended, and the participation fee of up to \$140 are programme costs; participation may not be denied for inability to pay and both are waived where the person is deemed unable to pay. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

### WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

#### WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED criminal history first.

#### WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The participant was terminated from the programme or the offence was reinstated.
- A subsequent traffic violation was received within six months of the ticket.
- The incident caused death or serious bodily injury.
- The Traffic Education Program Director will not attest.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

#### THE PAGES IN THIS SET

- sc\_tep-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a South Carolina traffic charge after you completed the Traffic Education Program)
- sc\_tep-attestation-request-3: the written request to the office the record names as the attesting authority (Clear a South Carolina traffic charge after you completed the Traffic Education Program)

Route: obligation:track-only:SC:sc\_tep

PETITION - CLEAR A SOUTH CAROLINA GENERAL SESSIONS CHARGE THAT DID NOT END  
IN A CONVICTION

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in  
this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO DESTROY ARREST RECORDS OF A GENERAL SESSIONS  
NON-CONVICTION, S.C. CODE Sec. 17-1-40

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec.  
17-1-40(A); S.C. Code Sec. 17-1-40(B); S.C. Code Sec. 17-1-40(C); S.C. Code Sec. 17-22-910; S.C.  
Code Sec. 17-22-930; S.C. Code Sec. 17-22-940(A)(1); S.C. Code Sec. 17-22-940(E); S.C. Code Sec.  
17-22-940(G); S.C. Code Sec. 17-22-940(H) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 17-1-40(B)(1) provides that where a person's record is expunged  
under Article 9 of Chapter 22 because the person was charged with a criminal offence, or issued a  
courtesy summons, and the charge was discharged, proceedings were dismissed, or the person was found  
not guilty, the arrest and booking record, associated bench warrants, mug shots and fingerprints must be  
destroyed and no evidence of the record may be retained by any municipal, county or state agency. Two  
provisos qualify that destruction and must be disclosed: law enforcement and prosecution agencies retain  
the arrest and booking record, bench warrants, mug shots and fingerprints under seal for three years and  
one hundred twenty days, and may retain them indefinitely under seal for ongoing or future investigation  
and prosecution of the offence, administrative hearings and litigation defence; and detention and  
correctional facilities retain booking records and institutional files under seal for the same period. The  
route runs through the Solicitor's Office. Section 17-22-940(A)(1) exempts a Sec. 17-1-40 applicant from  
the \$250 administrative fee unless the charge was dismissed, discharged or nolle prossed as part of the  
plea arrangement under which the defendant pled guilty and was sentenced to other charges; Sec.  
17-22-940(E)(1) exempts the route from the \$25 SLED verification fee and Sec. 17-22-940(E) from  
SLED verification itself; and Sec. 17-22-940(H) bars the clerk from charging a filing fee where the charge  
was discharged, dismissed, nolle prossed or the applicant was acquitted. Section 17-22-940(G) permits  
multiple charges from a single incident on one application.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - plea arrangement] Were these charges dropped as part of a deal in which you pleaded guilty to something else and were sentenced on it?

.....  
.....

[C12 - courtesy summons] Were you issued a courtesy summons rather than arrested?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 17-1-40(A); S.C. Code Sec. 17-1-40(B); S.C. Code Sec. 17-1-40(C); S.C. Code Sec. 17-22-910; S.C. Code Sec. 17-22-930; S.C. Code Sec. 17-22-940(A)(1); S.C. Code Sec. 17-22-940(E); S.C. Code Sec. 17-22-940(G); S.C. Code Sec. 17-22-940(H).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route:

obligation:track-pathway:SC:sc\_17\_1\_40\_general\_sessions:general-sessions-non-conviction-expungemen  
t

## FILING INSTRUCTIONS - CLEAR A SOUTH CAROLINA GENERAL SESSIONS CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Destroy Arrest Records of a General Sessions Non-Conviction, S.C. Code Sec. 17-1-40.

Read at source on 2026-08-06, Sec. 17-1-40(B)(1) provides that where a person's record is expunged under Article 9 of Chapter 22 because the person was charged with a criminal offence, or issued a courtesy summons, and the charge was discharged, proceedings were dismissed, or the person was found not guilty, the arrest and booking record, associated bench warrants, mug shots and fingerprints must be destroyed and no evidence of the record may be retained by any municipal, county or state agency. Two provisos qualify that destruction and must be disclosed: law enforcement and prosecution agencies retain the arrest and booking record, bench warrants, mug shots and fingerprints under seal for three years and one hundred twenty days, and may retain them indefinitely under seal for ongoing or future investigation and prosecution of the offence, administrative hearings and litigation defence; and detention and correctional facilities retain booking records and institutional files under seal for the same period. The route runs through the Solicitor's Office. Section 17-22-940(A)(1) exempts a Sec. 17-1-40 applicant from the \$250 administrative fee unless the charge was dismissed, discharged or nolle prossed as part of the plea arrangement under which the defendant pled guilty and was sentenced to other charges; Sec. 17-22-940(E)(1) exempts the route from the \$25 SLED verification fee and Sec. 17-22-940(E) from SLED verification itself; and Sec. 17-22-940(H) bars the clerk from charging a filing fee where the charge was discharged, dismissed, nolle prossed or the applicant was acquitted. Section 17-22-940(G) permits multiple charges from a single incident on one application.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office, which supplies the mandatory blank order form, assists in completing it, obtains the signatures, files the completed order with the clerk of court and distributes certified copies. No SLED verification is required on this route and no SLED fee is charged.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed; the order is signed by a circuit court judge and filed with the clerk of court.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: No \$250 solicitor administrative fee, unless the charge was dismissed, discharged or nolle prossed as part of the plea arrangement under which the defendant pled guilty and was sentenced to other charges, in which case the \$250 applies. No \$25 SLED verification fee. No \$35 clerk of court filing fee where the charge was discharged, dismissed, nolle prossed or the applicant was acquitted. Fee waiver as recorded: The Sec. 17-22-940(A)(1) exemption is the operative relief on this route and is automatic



rather than discretionary. The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- The clerk filing fee is waived for section 17-1-40 non-convictions. No filing fee is charged by the clerk's office where the charge was discharged, dismissed, nol prossed, or the applicant was acquitted.
- An applicant seeking expungement of General Sessions charges under section 17-1-40 is exempt from the administrative fee, unless the charge was dismissed, discharged or nolle prossed as part of a plea arrangement under which the defendant pled guilty and was sentenced on other charges.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The dismissal was, or may have been, part of a plea arrangement under which the participant pled guilty to other charges. This changes the fee and complicates the application.
- Several charges were brought and only some were dismissed.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Dismissals tied to plea arrangements.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the

initial package still generates.

#### THE PAGES IN THIS SET

- sc\_17\_1\_40\_general\_sessions-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a South Carolina General Sessions charge that did not end in a conviction)

Route:

obligation:track-pathway:SC:sc\_17\_1\_40\_general\_sessions:general-sessions-non-conviction-expungement

PETITION - CLEAR AN OLD SOUTH CAROLINA UNLAWFUL HANDGUN POSSESSION  
CONVICTION - THE WINDOW CLOSES 7 MARCH 2029

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE AN OLD UNLAWFUL HANDGUN POSSESSION  
CONVICTION, S.C. CODE Sec. 17-1-65

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 17-1-65; S.C. Code Sec. 16-23-20; S.C. Code Sec. 17-22-940(E); 2024 Act No. 111 (H.3594), Sec. 20 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 17-1-65 provides that a person may apply for an expungement of one conviction for unlawful possession of a handgun as provided in Sec. 16-23-20, if the conviction occurred prior to the enactment of the South Carolina Constitutional Carry/Second Amendment Preservation Act of 2024, and that an application under the section must be made within five years of the enactment of the section. The section was created by 2024 Act No. 111 (H.3594), Sec. 20, effective March 7, 2024, which fixes both dates: the conviction must predate March 7, 2024, and the application must be made before March 7, 2029. SCCA 223C (06/2024), read at source on the same date, is the instrument for this route and not a general-purpose General Sessions destruction order: it recites that the defendant is entitled to have the records expunged 'according to S.C. Code Ann. Sec. 17-1-65' and carries three findings tracking the section exactly - conviction under Sec. 16-23-20 prior to the enactment of the Act on March 7, 2024; application submitted prior to March 7, 2029; and no previous application for expungement of a handgun possession conviction under Sec. 17-1-65. The form also recites the Sec. 17-1-40 sealed retentions and the Sec. 22-5-910 SLED nonpublic retention, so the surviving records are stated on the order itself. This is a closing window and the deadline should be surfaced unprompted.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - conviction date] On what date were you convicted of unlawful possession of a handgun?

.....  
.....

[C12 - conviction statute] Does the sentencing paperwork show the conviction was under S.C. Code Sec. 16-23-20?

.....  
.....

[C13 - prior handgun application] Have you ever applied before for an expungement of a handgun possession conviction under Sec. 17-1-65?

.....  
.....

[C14 - other handgun convictions] Do you have more than one conviction for unlawful possession of a handgun?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 17-1-65; S.C. Code Sec. 16-23-20; S.C. Code Sec. 17-22-940(E); 2024 Act No. 111 (H.3594), Sec. 20.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_17\_1\_65\_handgun:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR AN OLD SOUTH CAROLINA UNLAWFUL HANDGUN POSSESSION CONVICTION - THE WINDOW CLOSES 7 MARCH 2029

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge an Old Unlawful Handgun Possession Conviction, S.C. Code Sec. 17-1-65.

Read at source on 2026-08-06, Sec. 17-1-65 provides that a person may apply for an expungement of one conviction for unlawful possession of a handgun as provided in Sec. 16-23-20, if the conviction occurred prior to the enactment of the South Carolina Constitutional Carry/Second Amendment Preservation Act of 2024, and that an application under the section must be made within five years of the enactment of the section. The section was created by 2024 Act No. 111 (H.3594), Sec. 20, effective March 7, 2024, which fixes both dates: the conviction must predate March 7, 2024, and the application must be made before March 7, 2029. SCCA 223C (06/2024), read at source on the same date, is the instrument for this route and not a general-purpose General Sessions destruction order: it recites that the defendant is entitled to have the records expunged 'according to S.C. Code Ann. Sec. 17-1-65' and carries three findings tracking the section exactly - conviction under Sec. 16-23-20 prior to the enactment of the Act on March 7, 2024; application submitted prior to March 7, 2029; and no previous application for expungement of a handgun possession conviction under Sec. 17-1-65. The form also recites the Sec. 17-1-40 sealed retentions and the Sec. 22-5-910 SLED nonpublic retention, so the surviving records are stated on the order itself. This is a closing window and the deadline should be surfaced unprompted.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office, which supplies the mandatory blank SCCA 223C order form, obtains the signatures, files the completed order and distributes certified copies. SLED verifies statutory eligibility and the \$25 verification fee applies, Sec. 17-1-65 not being on the Sec. 17-22-940(E)(1) exemption list.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed; SCCA 223C is an order of the Court of General Sessions.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- Diary the March 7, 2029 section 17-1-65 deadline.
- This is a closing window. A participant who misses March 7, 2029 loses the route permanently, and it is exactly the kind of deadline a product should surface unprompted.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The conviction date is on or after 7 March 2024, or cannot be established from the record.
- The conviction may not have been under Sec. 16-23-20.
- The participant has more than one handgun possession conviction, since the section reaches one.
- The participant has applied under Sec. 17-1-65 before.
- The 7 March 2029 deadline is close enough that a delay would forfeit the route; the participant should be told plainly and referred if the solicitor's office cannot process it in time.
- Any firearm rights question, which this route does not answer.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_17\_1\_65\_handgun-primary-filing-1: the composed petition, on this route's own statutory ground  
(Clear an old South Carolina unlawful handgun possession conviction - the window closes 7 March 2029)

Route: obligation:track-pathway:SC:sc\_17\_1\_65\_handgun:eligible-conviction-expungement



PETITION - CLEAR A LOW-LEVEL SOUTH CAROLINA CONVICTION AFTER THREE YEARS

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE A FIRST LOW-LEVEL CONVICTION OR A DOMESTIC VIOLENCE THIRD-DEGREE CONVICTION, S.C. CODE Sec. 22-5-910

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 22-5-910(A); S.C. Code Sec. 22-5-910(B); S.C. Code Sec. 22-5-910(C); S.C. Code Sec. 22-5-910(D); S.C. Code Sec. 22-5-910(E); S.C. Code Sec. 22-5-910(F); S.C. Code Sec. 16-25-20(D); S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 22-5-910(A) allows a defendant convicted of a crime carrying a penalty of not more than thirty days imprisonment or a one thousand dollar fine, or both, or a first offence for unlawful possession of a firearm or weapon carrying not more than one year or a one thousand dollar fine, or both, to apply after three years from the date of the conviction to the circuit court for an order expunging the records of the arrest and conviction and any associated bench warrant; the section does not apply to an offence involving the operation of a motor vehicle. Subsection (B) sets five years for a domestic violence third degree conviction under Sec. 16-25-20(D), or Sec. 16-25-20(B)(1) as it existed before June 4, 2015. Subsection (C) requires no other conviction, including out-of-state convictions, during the applicable period. Subsection (E) defines conviction to include a guilty plea, a plea of nolo contendere or the forfeiting of bail, and provides that any number of subsection (A) offences sentenced at a single sentencing proceeding that are closely connected and arose out of the same incident may be treated as one conviction for expungement purposes. Subsection (F) bars expungement where the person has pending criminal charges of any kind unless they have been pending more than five years, tolled for any time under a bench warrant for failure to appear, allows the relief once only, and applies retroactively. Section 17-22-940(D) requires the summary court judge to attest, and Sec. 17-22-940(E) requires SLED verification with the \$25 fee.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - conviction date] On what date were you convicted, counting a guilty plea, a no-contest plea, or forfeiting bail as a conviction?

.....  
.....

[C12 - penalty ceiling] What was the maximum penalty for the offence you were convicted of - how many days of jail and what fine did the law allow?

.....  
.....

[C13 - motor vehicle offense] Did the offence involve operating a motor vehicle?

.....  
.....

[C14 - domestic violence third] Was the conviction for domestic violence in the third degree?

.....  
.....

[C15 - firearm possession] Was the conviction a first offence of unlawful possession of a firearm or weapon?

.....  
.....

[C16 - convictions since period] Have you had any other conviction anywhere, including in another state, since that conviction?

.....  
.....

[C17 - closely connected offenses] Were you sentenced for more than one offence at the same sentencing, and did they come out of the same incident?

.....  
.....

[C18 - bench warrant history] Have you ever been under a bench warrant for failing to appear, and for how long?

(Asked only where the participant has a pending charge, because the five-year pending-charge tolerance under Sec. 22-5-910(F) is tolled for any time under such a warrant.)

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 22-5-910(A); S.C. Code Sec. 22-5-910(B); S.C. Code Sec. 22-5-910(C); S.C. Code Sec. 22-5-910(D);

S.C. Code Sec. 22-5-910(E); S.C. Code Sec. 22-5-910(F); S.C. Code Sec. 16-25-20(D); S.C. Code Sec. 17-22-940(D); S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_22\_5\_910:eligible-conviction-expungement

REQUEST FOR ATTESTATION - CLEAR A LOW-LEVEL SOUTH CAROLINA CONVICTION  
AFTER THREE YEARS

TO: Solicitor's Office in the judicial circuit where the offence was committed

.....

FROM: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

DATE OF BIRTH: 1968-12-31

REQUEST FOR ATTESTATION

I am asking the office named above for the attestation the record requires before this matter can go forward.

The matter this request concerns:

Court or office that handled the matter:

.....

Case or docket number:

.....

Date of the disposition:

.....

What I am asking for:

.....

.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

Route: obligation:track-pathway:SC:sc\_22\_5\_910:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR A LOW-LEVEL SOUTH CAROLINA CONVICTION AFTER THREE YEARS

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge a First Low-Level Conviction or a Domestic Violence Third-Degree Conviction, S.C. Code Sec. 22-5-910.

Read at source on 2026-08-06, Sec. 22-5-910(A) allows a defendant convicted of a crime carrying a penalty of not more than thirty days imprisonment or a one thousand dollar fine, or both, or a first offence for unlawful possession of a firearm or weapon carrying not more than one year or a one thousand dollar fine, or both, to apply after three years from the date of the conviction to the circuit court for an order expunging the records of the arrest and conviction and any associated bench warrant; the section does not apply to an offence involving the operation of a motor vehicle. Subsection (B) sets five years for a domestic violence third degree conviction under Sec. 16-25-20(D), or Sec. 16-25-20(B)(1) as it existed before June 4, 2015. Subsection (C) requires no other conviction, including out-of-state convictions, during the applicable period. Subsection (E) defines conviction to include a guilty plea, a plea of nolo contendere or the forfeiting of bail, and provides that any number of subsection (A) offences sentenced at a single sentencing proceeding that are closely connected and arose out of the same incident may be treated as one conviction for expungement purposes. Subsection (F) bars expungement where the person has pending criminal charges of any kind unless they have been pending more than five years, tolled for any time under a bench warrant for failure to appear, allows the relief once only, and applies retroactively. Section 17-22-940(D) requires the summary court judge to attest, and Sec. 17-22-940(E) requires SLED verification with the \$25 fee.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. The summary court judge must attest by signature under Sec. 17-22-940(D). SLED verifies and documents statutory eligibility before the solicitor or his designee and then a circuit court judge sign, and the \$25 SLED verification fee applies.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed; the order is issued by the circuit court.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Under Sec. 17-22-940(E), on this route a conviction for any minor traffic-related offence that is not related in any way to driving under the influence of alcohol or other drugs is not considered a bar to expungement. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as

a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- Note on the SLED fee: section 22-5-910 is not on the verification-fee exemption list, so the \$25 applies.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- Any motor vehicle offence.
- Any domestic violence matter.
- The statutory penalty ceiling for the offence cannot be established from the record.
- The participant does not think of themselves as convicted because they forfeited bail, which Sec. 22-5-910(E) treats as a conviction.
- The participant has already used Sec. 22-5-910 once.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Bail forfeiture counts as a conviction under section 22-5-910.
- LegalEase must not generate any statutory penalty ceiling, offence classification or first-offence status not taken from the record.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the

initial package still generates.

#### THE PAGES IN THIS SET

- sc\_22\_5\_910-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a low-level South Carolina conviction after three years)
- sc\_22\_5\_910-attestation-request-3: the written request to the office the record names as the attesting authority (Clear a low-level South Carolina conviction after three years)

Route: obligation:track-pathway:SC:sc\_22\_5\_910:eligible-conviction-expungement



PETITION - CLEAR A SOUTH CAROLINA CONVICTION YOU WERE SENTENCED FOR UNDER THE YOUTHFUL OFFENDER ACT

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE A FIRST-OFFENCE YOUTHFUL OFFENDER ACT CONVICTION, S.C. CODE Sec. 22-5-920

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 22-5-920(A); S.C. Code Sec. 22-5-920(B)(1); S.C. Code Sec. 22-5-920(B)(2); S.C. Code Sec. 22-5-920(B)(3); S.C. Code Title 24, Chapter 19; S.C. Code Sec. 16-1-60; S.C. Code Sec. 16-25-30; S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 22-5-920(B)(1) allows a defendant with a first offence conviction as a youthful offender, for which the defendant was sentenced pursuant to Chapter 19 of Title 24, the Youthful Offender Act, and who has not been convicted of any offence including an out-of-state offence while serving the youthful offender sentence including probation and parole and for a period of five years from the date of completion of that sentence, to apply to the circuit court for an order expunging the records of the arrest and conviction. Convictions for driving under suspension, and for disturbing schools under Sec. 16-17-420 before May 17, 2018, are excepted from the disqualifying set. Subsection (B)(2) excludes an offence involving the operation of a motor vehicle, an offence classified as a violent crime in Sec. 16-1-60, an offence contained in Chapter 25 of Title 16 except as otherwise provided in Sec. 16-25-30, and an offence for which registration is required under the Sex Offender Registry Act. Subsection (B)(3) makes the relief once only and applies it retroactively. Subsection (A) defines conviction to include a guilty plea, a plea of nolo contendere or the forfeiting of bail, and allows any number of offences receiving a youthful offender sentence at a single sentencing proceeding that are closely connected and arose out of the same incident to be treated as one conviction for expungement purposes. Section 17-22-940(E) requires SLED verification with the \$25 fee and provides that a minor traffic-related conviction unrelated to driving under the influence is not a bar.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....

.....

[C11 - yoa sentenced] Does your sentencing paperwork say you were sentenced under the Youthful Offender Act - not just that you were young enough to qualify?

.....  
.....

[C12 - sentence completion date] On what date did you finish the whole youthful offender sentence, including any probation and any parole?

.....  
.....

[C13 - convictions since completion] Have you had any conviction anywhere, including in another state, while you were serving that sentence or in the five years since you finished it?

.....  
.....

[C14 - excluded category] Did the offence involve driving, violence, a domestic relationship, or anything that put you on the sex offender registry?

.....  
.....

[C15 - closely connected offenses] Were you given youthful offender sentences for more than one offence at the same sentencing, and did they come out of the same incident?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 22-5-920(A); S.C. Code Sec. 22-5-920(B)(1); S.C. Code Sec. 22-5-920(B)(2); S.C. Code Sec. 22-5-920(B)(3); S.C. Code Title 24, Chapter 19; S.C. Code Sec. 16-1-60; S.C. Code Sec. 16-25-30; S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_22\_5\_920\_yoa:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR A SOUTH CAROLINA CONVICTION YOU WERE SENTENCED FOR UNDER THE YOUTHFUL OFFENDER ACT

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge a First-Offence Youthful Offender Act Conviction, S.C. Code Sec. 22-5-920.

Read at source on 2026-08-06, Sec. 22-5-920(B)(1) allows a defendant with a first offence conviction as a youthful offender, for which the defendant was sentenced pursuant to Chapter 19 of Title 24, the Youthful Offender Act, and who has not been convicted of any offence including an out-of-state offence while serving the youthful offender sentence including probation and parole and for a period of five years from the date of completion of that sentence, to apply to the circuit court for an order expunging the records of the arrest and conviction. Convictions for driving under suspension, and for disturbing schools under Sec. 16-17-420 before May 17, 2018, are excepted from the disqualifying set. Subsection (B)(2) excludes an offence involving the operation of a motor vehicle, an offence classified as a violent crime in Sec. 16-1-60, an offence contained in Chapter 25 of Title 16 except as otherwise provided in Sec. 16-25-30, and an offence for which registration is required under the Sex Offender Registry Act. Subsection (B)(3) makes the relief once only and applies it retroactively. Subsection (A) defines conviction to include a guilty plea, a plea of nolo contendere or the forfeiting of bail, and allows any number of offences receiving a youthful offender sentence at a single sentencing proceeding that are closely connected and arose out of the same incident to be treated as one conviction for expungement purposes. Section 17-22-940(E) requires SLED verification with the \$25 fee and provides that a minor traffic-related conviction unrelated to driving under the influence is not a bar.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. SLED verifies and documents statutory eligibility before the solicitor or his designee and then a circuit court judge sign, and the \$25 SLED verification fee applies.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed; the order is issued by the circuit court.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Under Sec. 17-22-940(E), on this route a conviction for any minor traffic-related offence that is not related in any way to driving under the influence of alcohol or other drugs is not considered a bar to expungement. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation

account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The sentencing paperwork does not clearly record a Youthful Offender Act sentence.
- Any motor vehicle offence, any Sec. 16-1-60 violent crime, any Chapter 25 domestic violence offence, or any registration offence.
- Any conviction during the service of the sentence or the five years following it, other than driving under suspension or a pre-May-2018 disturbing schools conviction.
- The participant has already used Sec. 22-5-920 once.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- YOA requires actual YOA sentencing.
- LegalEase must not generate the statement that a person eligible for YOA sentencing qualifies under section 22-5-920 without having been sentenced under it.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_22\_5\_920\_yoa-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a South Carolina conviction you were sentenced for under the Youthful Offender Act)

Route: obligation:track-pathway:SC:sc\_22\_5\_920\_yoa:eligible-conviction-expungement

PETITION - CLEAR A FIRST SOUTH CAROLINA DRUG CONVICTION

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE A FIRST-OFFENCE DRUG CONVICTION, S.C. CODE  
Sec. 22-5-930

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 22-5-930(A); S.C. Code Sec. 22-5-930(B); S.C. Code Sec. 22-5-930(C); S.C. Code Sec. 22-5-930(D); S.C. Code Sec. 22-5-930(E); S.C. Code Sec. 44-53-370(c); S.C. Code Sec. 40-43-86(E); S.C. Code Sec. 44-53-450; S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read in full at source on 2026-08-06, Sec. 22-5-930 has two branches. Subsection (A) reaches a first offence conviction for either simple possession of a controlled substance under Article 3 of Chapter 53, Title 44, or unlawful possession of a prescription drug under Sec. 40-43-86(E), including charges for which the person would now be eligible for a conditional discharge under Sec. 44-53-450, and allows application to the circuit court three years from the date of completion of the sentence including probation and parole, whether the conviction was in magistrates or general sessions court. Subsection (B) reaches a first offence conviction for possession with intent to distribute a controlled substance under the same article and allows application twenty years from the date of completion of any sentence including probation and parole for a drug conviction or any felony conviction. Subsection (C) requires no other conviction, including out-of-state convictions, during the three-year period, or no other drug or felony conviction during the twenty-year period. Subsection (D) bars expungement while criminal charges of any kind are pending unless they have been pending more than five years, tolled for time under a bench warrant for failure to appear; allows the relief once only; and bars it where the person has had a conditional discharge within the five years before the arrest for a simple possession of marijuana charge, or within the ten years before the arrest for any other controlled substance or a prescription drug charge. The section applies retroactively but does not affect a pre-existing enhanced conviction or sentence. Subsection (E) requires SLED to keep a nonpublic record.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD



Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....

.....

[C11 - drug offense type] Was the conviction for simple possession, for unlawful possession of a prescription drug, or for possession with intent to distribute?

.....

.....

[C12 - substance type] What controlled substance was involved - was it marijuana or something else?

.....

.....

[C13 - sentence completion date] On what date did you finish the whole sentence for this conviction, including any probation and any parole?

.....

.....

[C14 - prior drug offense] Was this your first drug conviction of this kind?

.....

.....

[C15 - prior conditional discharge] Had you had a conditional discharge at any point before you were arrested on this charge, and if so when?

.....

.....

[C16 - convictions since period] Have you had any other conviction anywhere since you finished the sentence?

.....

.....

[C17 - prior felony for pwid] For a possession-with-intent conviction: have you completed a sentence for any other drug conviction or any felony conviction, and when?

(Asked only on the Sec. 22-5-930(B) branch, because the twenty-year clock runs from completion of any sentence for a drug or felony conviction.)

.....

.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 22-5-930(A); S.C. Code Sec. 22-5-930(B); S.C. Code Sec. 22-5-930(C); S.C. Code Sec. 22-5-930(D); S.C. Code Sec. 22-5-930(E); S.C. Code Sec. 44-53-370(c); S.C. Code Sec. 40-43-86(E); S.C. Code Sec. 44-53-450; S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_22\_5\_930\_drug:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR A FIRST SOUTH CAROLINA DRUG CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge a First-Offence Drug Conviction, S.C. Code Sec. 22-5-930.

Read in full at source on 2026-08-06, Sec. 22-5-930 has two branches. Subsection (A) reaches a first offence conviction for either simple possession of a controlled substance under Article 3 of Chapter 53, Title 44, or unlawful possession of a prescription drug under Sec. 40-43-86(EE), including charges for which the person would now be eligible for a conditional discharge under Sec. 44-53-450, and allows application to the circuit court three years from the date of completion of the sentence including probation and parole, whether the conviction was in magistrates or general sessions court. Subsection (B) reaches a first offence conviction for possession with intent to distribute a controlled substance under the same article and allows application twenty years from the date of completion of any sentence including probation and parole for a drug conviction or any felony conviction. Subsection (C) requires no other conviction, including out-of-state convictions, during the three-year period, or no other drug or felony conviction during the twenty-year period. Subsection (D) bars expungement while criminal charges of any kind are pending unless they have been pending more than five years, tolled for time under a bench warrant for failure to appear; allows the relief once only; and bars it where the person has had a conditional discharge within the five years before the arrest for a simple possession of marijuana charge, or within the ten years before the arrest for any other controlled substance or a prescription drug charge. The section applies retroactively but does not affect a pre-existing enhanced conviction or sentence. Subsection (E) requires SLED to keep a nonpublic record.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. SLED verifies and documents statutory eligibility before the solicitor or his designee and then a circuit court judge sign, and the \$25 SLED verification fee applies. Venue: Statewide statute administered circuit by circuit; the section reaches convictions in magistrates court and general sessions court alike. Apply to the Solicitor's Office in the judicial circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Under Sec. 17-22-940(E), on this route a conviction for any minor traffic-related offence that is not related in any way to driving under the influence of alcohol or other drugs is not considered a bar to expungement. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation

account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The offence is not clearly within one of the two branches of Sec. 22-5-930.
- Any prior conditional discharge, because the five-year and ten-year lookback bars turn on it and are measured from the date of arrest.
- A possession-with-intent conviction, which carries a twenty-year clock and belongs with counsel.
- The participant has already used Sec. 22-5-930 once.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- LegalEase must not generate the statement that all drug convictions route to section 22-5-930.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_22\_5\_930\_drug-primary-filing-1: the composed petition, on this route's own statutory ground (Clear

a first South Carolina drug conviction)

Route: obligation:track-pathway:SC:sc\_22\_5\_930\_drug:eligible-conviction-expungement

PETITION - CLEAR A FIRST SOUTH CAROLINA BAD-CHECK CONVICTION AFTER ONE YEAR

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE A FIRST-OFFENCE FRAUDULENT CHECK  
CONVICTION, S.C. CODE Sec. 34-11-90(E)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 34-11-90(e); S.C. Code Sec. 34-11-95; S.C. Code Sec. 17-22-910; S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 34-11-90(e) provides that after a conviction under the chapter on a first offence the defendant may, after one year from the date of the conviction, apply or cause someone acting on his behalf to apply to the court for an order expunging the records of the arrest and conviction. The provision does not apply to any crime classified as a felony, and a conviction is classified as a felony where the instrument drawn or uttered exceeds five thousand dollars. If the defendant has had no other conviction during the one-year period following the conviction, the court shall issue the order. No person has any rights under the section more than one time. After expungement SLED keeps a nonpublic record of the offence and the date of expungement to prevent a second use, which is not releasable under Sec. 34-11-95 or the Freedom of Information Act except to authorised officials. 'Conviction' includes a guilty plea, a plea of nolo contendere, or the forfeiting of bail, and each instrument drawn or uttered constitutes a separate offence. Section 17-22-940(E) requires SLED verification on this route and provides that a conviction for any minor traffic-related offence unrelated to driving under the influence is not a bar.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....

.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - conviction date] On what date were you convicted, including a guilty plea, a no-contest plea or a bail forfeiture?

.....  
.....



[C12 - instrument amount] What was the amount of the cheque?

.....  
.....

[C13 - convictions since year] Have you had any other conviction of any kind in the year since that conviction?

.....  
.....

[C14 - number of checks] How many cheques were involved, and were they charged as separate offences?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 34-11-90(e); S.C. Code Sec. 34-11-95; S.C. Code Sec. 17-22-910; S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_34\_11\_90e\_check:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR A FIRST SOUTH CAROLINA BAD-CHECK CONVICTION AFTER ONE YEAR

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge a First-Offence Fraudulent Check Conviction, S.C. Code Sec. 34-11-90(e).

Read at source on 2026-08-06, Sec. 34-11-90(e) provides that after a conviction under the chapter on a first offence the defendant may, after one year from the date of the conviction, apply or cause someone acting on his behalf to apply to the court for an order expunging the records of the arrest and conviction. The provision does not apply to any crime classified as a felony, and a conviction is classified as a felony where the instrument drawn or uttered exceeds five thousand dollars. If the defendant has had no other conviction during the one-year period following the conviction, the court shall issue the order. No person has any rights under the section more than one time. After expungement SLED keeps a nonpublic record of the offence and the date of expungement to prevent a second use, which is not releasable under Sec. 34-11-95 or the Freedom of Information Act except to authorised officials. 'Conviction' includes a guilty plea, a plea of nolo contendere, or the forfeiting of bail, and each instrument drawn or uttered constitutes a separate offence. Section 17-22-940(E) requires SLED verification on this route and provides that a conviction for any minor traffic-related offence unrelated to driving under the influence is not a bar.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. SLED verifies and documents statutory eligibility before the solicitor or his designee and then a circuit court judge sign, and the \$25 SLED verification fee applies on this route.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Under Sec. 17-22-940(E), on this route a conviction for any minor traffic-related offence that is not related in any way to driving under the influence of alcohol or other drugs is not considered a bar to expungement. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED retention: SLED retains nonpublic information under section 34-11-90(e).
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The cheque exceeded five thousand dollars, which makes the conviction a felony and closes the route.
- Any conviction of any kind during the year following the conviction.
- The participant has already used Sec. 34-11-90(e) once.
- More than one cheque was involved, since each instrument is a separate offence and each needs its own order and its own fees.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_34\_11\_90e\_check-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a first South Carolina bad-check conviction after one year)

Route: obligation:track-pathway:SC:sc\_34\_11\_90e\_check:eligible-conviction-expungement

PETITION - CLEAR A FIRST SOUTH CAROLINA FAILURE-TO-STOP-FOR-A-BLUE-LIGHT  
CONVICTION AFTER THREE YEARS

IN THE ..... COURT

(Solicitor's Office in the judicial circuit where the offence was committed - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,  
PETITIONER.

Case number, if the court assigns one at filing:

.....

SOLICITOR APPLICATION TO EXPUNGE A FIRST-OFFENCE FAILURE TO STOP FOR A BLUE  
LIGHT CONVICTION, S.C. CODE Sec. 56-5-750(F)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under S.C. Code Sec. 56-5-750(B)(1); S.C. Code Sec. 56-5-750(F); S.C. Code Sec. 17-22-940(E) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Read at source on 2026-08-06, Sec. 56-5-750(F) provides that after a conviction pursuant to subsection (B)(1) for a first offence, the person may, after three years from the date of completion of all terms and conditions of the sentence for the first offence, apply or cause someone acting on his behalf to apply to the court for an order expunging the records of the arrest and conviction. The provision does not apply to any crime classified as a felony. If the person has had no other conviction during the three-year period following completion of the terms and conditions, the court shall issue the order. No person has any rights under the section more than one time. After expungement both SLED and the Department of Motor Vehicles keep a nonpublic record of the offence and the date of expungement to prevent a second use, exempt from the Freedom of Information Act except to authorised officials. The review's caution about the amendment effective 12 May 2026 is answered: 2025 Act No. 38 (H.3127), section 1, effective May 12, 2026, reenacted subsection (A) unchanged, altered the subsection (B)(1) and (B)(2) penalties, added subsection (B)(3), and raised the subsection (C)(1) and (C)(2) penalties; it did not amend subsection (F), whose three-year first-offence expungement is unchanged. Section 17-22-940(E) requires SLED verification with the \$25 fee and provides that a minor traffic-related conviction unrelated to driving under the influence is not a bar.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - applicant name] What is your full legal name, and every other name you have been known by?

.....  
.....

[C2 - date of birth] What is your date of birth?

.....  
.....

[C3 - charge identity] What was the charge, and what is the warrant, ticket or indictment number?

.....  
.....

[C4 - offense county] In which South Carolina county was the offence committed?

.....  
.....

[C5 - court level] Was the case handled in magistrate court, municipal court or General Sessions court?

.....  
.....

[C6 - arrest date] On what date were you arrested or served, and which agency arrested you?

.....  
.....

[C7 - disposition detail] How did the case end, and on what date?

.....  
.....

[C8 - single incident charges] Did more than one charge come out of this same incident? If so, list them all.

.....  
.....

[C9 - prior expungement use] Have you ever had a South Carolina record expunged before, under any statute?

.....  
.....

[C10 - pending charges] Do you have any criminal charges pending anywhere right now, and if so since when?

.....  
.....

[C11 - offense date] On what date did the offence happen?

.....  
.....

[C12 - subsection charged] Which part of the failure-to-stop statute were you convicted under, and was it charged as a misdemeanour or a felony?

.....  
.....

[C13 - injury or death] Did the incident cause anyone great bodily injury or death?

.....  
.....

[C14 - terms completion date] On what date did you finish every term and condition of the sentence - fines, restitution, community service, probation, everything?

.....  
.....

[C15 - convictions since period] Have you had any other conviction anywhere in the three years since you finished those terms?

.....  
.....

[C16 - first offense status] Was this your first conviction under this statute?

.....  
.....

#### D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under S.C. Code Sec. 56-5-750(B)(1); S.C. Code Sec. 56-5-750(F); S.C. Code Sec. 17-22-940(E).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairville  
39501-2214

TELEPHONE: (228) 555-0199 ext. 4417

EMAIL: maria.alejandra.oshaughnessy.whitfield@longmailexample.org

Route: obligation:track-pathway:SC:sc\_56\_5\_750f:eligible-conviction-expungement

## FILING INSTRUCTIONS - CLEAR A FIRST SOUTH CAROLINA FAILURE-TO-STOP-FOR-A-BLUE-LIGHT CONVICTION AFTER THREE YEARS

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

### WHAT THIS SET OF PAPERS IS

Solicitor Application to Expunge a First-Offence Failure to Stop for a Blue Light Conviction, S.C. Code Sec. 56-5-750(F).

Read at source on 2026-08-06, Sec. 56-5-750(F) provides that after a conviction pursuant to subsection (B)(1) for a first offence, the person may, after three years from the date of completion of all terms and conditions of the sentence for the first offence, apply or cause someone acting on his behalf to apply to the court for an order expunging the records of the arrest and conviction. The provision does not apply to any crime classified as a felony. If the person has had no other conviction during the three-year period following completion of the terms and conditions, the court shall issue the order. No person has any rights under the section more than one time. After expungement both SLED and the Department of Motor Vehicles keep a nonpublic record of the offence and the date of expungement to prevent a second use, exempt from the Freedom of Information Act except to authorised officials. The review's caution about the amendment effective 12 May 2026 is answered: 2025 Act No. 38 (H.3127), section 1, effective May 12, 2026, reenacted subsection (A) unchanged, altered the subsection (B)(1) and (B)(2) penalties, added subsection (B)(3), and raised the subsection (C)(1) and (C)(2) penalties; it did not amend subsection (F), whose three-year first-offence expungement is unchanged. Section 17-22-940(E) requires SLED verification with the \$25 fee and provides that a minor traffic-related conviction unrelated to driving under the influence is not a bar.

### WHERE IT GOES

Solicitor's Office in the judicial circuit where the offence was committed

The applicant applies to the solicitor's office. SLED verifies and documents statutory eligibility before the solicitor or his designee and then a circuit court judge sign, and the \$25 SLED verification fee applies.

Both SLED and the Department of Motor Vehicles retain a nonpublic record after the order.

Venue: Statewide statute administered circuit by circuit. Apply to the Solicitor's Office in the judicial circuit where the offence was committed.

### WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: \$250 solicitor administrative fee per individual order under Sec. 17-22-940(A), nonrefundable even if the charge is later found ineligible; \$25 SLED verification fee under Sec. 17-22-940(E)(1); and the \$35 clerk of court filing fee under Sec. 17-22-940(F) and Sec. 8-21-310(C)(4), which the solicitor forwards and which is refunded if the charge is found statutorily ineligible. Under Sec. 17-22-940(E), on this route a conviction for any minor traffic-related offence that is not related in any way to driving under the influence of alcohol or other drugs is not considered a bar to expungement. Fee waiver as recorded: The solicitor may waive the \$250 fee only where a person has been falsely accused as a result of identity theft, Sec. 17-22-940(J). Each solicitor's office also maintains a private donation

account which may defray up to fifty per cent of the administrative fee on a first-come first-served basis, Sec. 17-22-940(A)(2).

## WHO MUST BE SERVED

Service as recorded: None by the participant. Distribution of the signed order to the arresting agency, detention facility, solicitor's office, the magistrate or municipal courts involved and SLED is performed by the solicitor's office under Sec. 17-22-940(B)(7). Notice as recorded: No participant-facing notice or opposition window applies on the solicitor route. Eligibility is verified by SLED where required and the solicitor or his designee may decline to consent, in which case Sec. 17-22-940(I) leaves the applicant to retained counsel and a circuit court determination.

## WHAT THE RECORD SAYS YOU MUST KNOW

- Fees require separate certified checks or money orders; no personal checks.
- SLED criminal history first.

## WHEN TO STOP AND GET HELP INSTEAD OF FILING

- SLED verification has not yet occurred. Section 17-22-940(E) requires SLED to verify and document statutory eligibility before anyone signs, and LegalEase must never tell a participant they are eligible before that.
- The solicitor or his designee declines to consent to the expungement.
- Any felony; any violent crime under Sec. 16-1-60; any domestic violence matter; any sex offender registration offence.
- Any pending charge, unless it has been pending more than five years and the tolling rule is clearly satisfied.
- Any drug conviction beyond a clean Sec. 44-53-450(b) conditional discharge.
- Trafficking facts, juvenile matters, or any immigration question.
- Federal, out-of-state, military or tribal records.
- The conviction may be a felony or may be under a subsection other than (B)(1).
- The incident involved injury, death or a high-speed pursuit.
- The completion date of every term and condition cannot be established from the record.
- The participant has already used Sec. 56-5-750(F) once.
- LegalEase must not generate any statement that the participant is eligible before SLED has verified it, since SLED verification precedes every signature.
- Where the solicitor does not consent, Sec. 17-22-940(I) leaves the applicant to retained counsel initiating an action in circuit court for a judicial determination of eligibility. Automated assistance ends there; the initial package still generates.

## THE PAGES IN THIS SET

- sc\_56\_5\_750f-primary-filing-1: the composed petition, on this route's own statutory ground (Clear a first South Carolina failure-to-stop-for-a-blue-light conviction after three years)



Route: obligation:track-pathway:SC:sc\_56\_5\_750f:eligible-conviction-expungement